

MASTER WEBSITE DISCLAIMER & TERMS OF USE

[Disclaimer](#) | [Terms and Conditions](#) | [Terms of Use](#)
[Copyright & Rights-Holder Policy](#) | [Voluntary Contribution Terms](#)

HINDU DEVOTIONAL COLLECTION

<https://ashishbharani.github.io/devotional/>

WEBSITE OPERATOR / COMPILER
Ashish Bharani

VERSION
1.1 - 03 October 2026

STATUS
Non-commercial devotional, cultural, educational, archival and
reference initiative; voluntary contributions only.

These Terms seek the maximum lawful contractual, procedural and evidentiary protection available. They do not, and cannot, create immunity from liability that applicable law makes non-excludable, nor can private terms override criminal process, court orders or mandatory statutory rights.

IMPORTANT LEGAL NOTICE

Free / non-commercial service. The Website is intended as a non-commercial devotional and reference initiative. Voluntary contributions are intended for upkeep, development, hosting, hardware, software, preservation and related project costs.

Section 79 is conditional. Where, and only where, the operator qualifies as an intermediary in relation to particular third-party information, data or communication links, all lawful protections under Section 79 of the Information Technology Act, 2000 and applicable Rules are expressly reserved. Free or non-commercial status alone does not create Section 79 protection.

90-day ordinary correction period. For non-urgent editorial, attributional, factual and comparable civil complaints, a complete written notice should ordinarily be given and the operator should be allowed up to 90 calendar days to investigate and cure the issue. This does not override any shorter mandatory statutory deadline, urgent court remedy, lawful government direction or criminal process.

Third-party rights remain with third parties. Search links, YouTube links, books, recordings, websites, images and external resources remain subject to the rights and terms of their respective owners and platforms.

No guaranteed results. Religious, ritual, Jyotisha, Panchang, traditional-purpose and other references are informational and do not guarantee spiritual, medical, legal, financial, matrimonial or other outcomes.

Acceptance. Access, continued use, download, retention, sharing or use after reasonable and conspicuous notice may be relied upon as evidence of acceptance to the fullest extent permitted by law. For downloads and contributions, affirmative click-wrap acceptance should be used wherever technically practicable.

Indian law / Delhi. Indian law governs. Subject to mandatory statutory jurisdiction and only where Delhi courts otherwise have lawful jurisdiction, Delhi is the selected forum for civil and contractual disputes.

If any provision conflicts with a mandatory law, court order, statutory authority or non-waivable right, the mandatory law or order prevails and the remaining provisions continue to the fullest extent legally possible.

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PART I - SCOPE, PURPOSE AND ACCEPTANCE

1. Definitions and Scope

For these Terms, the "Website" or "Service" means the Hindu Devotional Collection website and all creator-controlled pages, directories, databases, indexes, downloadable PDFs, documents, search functions, devotional listings, Scripture and Books resources, religious-music references, Panchang and calendar tools, ephemeris or astronomical-reference tools, favourites, counters, external links, YouTube search links, images, metadata, explanatory text and other material made available through or in connection with the Website.

"Operator" means Ashish Bharani acting as the compiler and administrator of the Website, and includes any lawful successor or person expressly authorised in writing to administer the Website.

2. Purpose and Character of the Website

The Website is a devotional, cultural, educational, historical, archival, research and informational reference initiative intended to organise, identify, catalogue, classify and make devotional and related material easier to discover. It is not represented as a commercial marketplace, streaming platform, publisher of all linked works, licensed repository of every underlying work, religious authority, or substitute for professional advice.

The Website may refer to material created, published, performed, translated, recorded, digitised or hosted by third parties. Inclusion ordinarily means that the work or resource has been identified for reference; it does not, by itself, mean that the Operator authored, owns or controls the underlying third-party material.

3. Electronic Notice and Acceptance

A user who voluntarily accesses, browses, searches, continues to use, downloads, saves, prints, links to, shares, contributes through or otherwise uses the Website after receiving reasonable and conspicuous notice of these Terms acknowledges them and agrees to be bound by them to the fullest extent permitted by applicable law.

Where applicable law requires a stronger or affirmative form of consent, the Website may use a checkbox, "I AGREE", "I AGREE & DOWNLOAD", "I AGREE & CONTINUE", contribution confirmation or similar electronic control. Nothing in these Terms attempts to manufacture consent where the law requires a different method of assent.

A person who does not agree with the applicable Terms should discontinue use and should not voluntarily download, retain, reproduce or redistribute creator-controlled material.

4. Electronic Contracting and Evidence

The parties intend these Terms to operate consistently with the Information Technology Act, 2000, including the law governing electronic records and electronic contracting, and with the Bharatiya Sakshya Adhiniyam, 2023 in relation to electronic records and evidence. The Operator may preserve lawful technical records of affirmative acceptance, including the date, time, Terms version and relevant transaction or download event.

PART II - NON-COMMERCIAL STATUS AND VOLUNTARY CONTRIBUTIONS

5. Non-Commercial Project Status

The Website is presently intended to operate as a non-commercial public-service and devotional reference initiative. Access to the principal devotional reference material is not sold by the Operator as a commercial devotional product.

The expressions "non-commercial", "not-for-profit initiative" and similar language describe the intended manner of operation. They do not represent that the project is a registered charitable trust, society, Section 8 company, tax-exempt entity or other legally constituted non-profit body unless such status is expressly and truthfully stated after obtaining the necessary registration.

6. Voluntary Contribution - Not a Purchase, Subscription or Investment

Any contribution is voluntary and is intended to assist with the reasonable costs of maintaining, preserving, developing, securing and making the Website available. A contribution is not the purchase price of a devotional work and does not buy copyright, ownership, partnership, equity, voting rights, editorial control, priority treatment, investment return, interest, religious benefit, guaranteed service, or any other proprietary entitlement.

The Operator retains editorial independence. A contributor does not acquire the right to require the inclusion, exclusion, promotion or ranking of any work, deity, community, tradition, source, performer or third-party service.

7. Permitted Use of Contributions

Subject to applicable law, voluntary contributions may be used for reasonable project expenses including domain registration, website hosting, storage, backups, bandwidth, software, hardware, computer equipment, security, development, maintenance, digitisation, accessibility, research tools, database services, archival preservation and other expenses reasonably connected with the Website.

Exact allocation may vary according to operational requirements. No contribution creates a trust or fiduciary fund in favour of the contributor unless expressly created by a separate legally binding instrument.

8. Tax, 80G and Foreign Contribution

Unless the Website expressly provides a legally valid certificate to the contrary, no representation is made that a contribution qualifies for deduction under Section 80G of the Income-tax Act, 1961 or for any other tax benefit. Contributors should obtain independent tax advice where required.

The Website does not intend to solicit or knowingly accept any contribution prohibited by the Foreign Contribution (Regulation) Act, 2010. A payment that constitutes foreign contribution shall be accepted only where all applicable registration, permission, banking, reporting and other legal requirements have been satisfied. Where the legal position is uncertain, a foreign source should not send funds merely because a technical payment route exists.

9. Contribution Refunds and Payment Providers

Except where applicable law requires otherwise, or where a payment is demonstrably unauthorised, duplicated or processed in error, a voluntary contribution may be treated as final once received and lawfully applied toward project expenses.

Banks, UPI services, payment gateways and other financial institutions are independent third parties. Their downtime, charges, fraud controls, processing errors and terms remain outside the Operator's direct control.

PART III - DEVOTIONAL, RELIGIOUS AND INFORMATIONAL DISCLAIMER

10. Diversity of Hindu Traditions

The Website recognises that Hindu traditions are diverse. Names, classifications, ritual procedures, theological interpretations, calendar conventions, lineages, regional practices, textual recensions and devotional associations may differ between communities, sampradayas, temples, families, scholars and practitioners.

Inclusion or classification of a tradition is an editorial and reference function. It does not declare that another reasonably documented tradition is false, invalid or inferior.

11. No Religious Authority, Endorsement or Canonical Determination

The Operator does not present the Website as the final religious, theological or ritual authority. Unless expressly supported by the relevant source, the Website does not claim that an item is universally canonical, universally orthodox, mandatory, exclusive or endorsed by every practitioner or institution.

References to a deity, saint, temple, sampradaya, scripture, community, performer, author, institution or platform do not by themselves imply sponsorship, affiliation, endorsement, certification or approval.

12. No Guaranteed Spiritual, Astrological or Material Outcomes

Nothing on the Website guarantees that reading, chanting, hearing, reciting, performing or following any mantra, stotra, prayer, bhajan, ritual, fast, Jyotisha association, Panchang indication, remedial practice or other devotional material will produce a particular spiritual, medical, matrimonial, financial, employment, examination, litigation, business, fertility, healing, protective or supernatural result.

Traditional purposes, "Best Time", Jyotisha, horoscope or similar metadata describe documented or reported devotional associations and are not warranties.

13. Panchang, Calendar, Ephemeris and Astronomical Reference

Panchang, Tithi, Nakshatra, Yoga, Karana, sunrise, sunset, moonrise, Muhurta, festival and astronomical or astrological calculations may vary according to geographical location, time zone, astronomical model, ayanamsha, sunrise convention, calendar tradition, regional practice and software implementation.

Such outputs are provided as reference information. A user requiring a religiously binding, professional, legal, medical, financial or ceremonial determination should consult a suitably qualified person or authoritative local tradition.

14. No Professional Advice or Advocate-Client Relationship

Nothing on the Website constitutes personalised legal, medical, psychiatric, psychological, financial, investment, tax, accounting, matrimonial or other regulated professional advice.

The Operator's professional background as an advocate does not create an advocate-client relationship, retainer, fiduciary relationship, duty of confidentiality or professional engagement merely because a person accesses the Website, sends general feedback, makes a contribution or reads material on the Website. A professional relationship can arise only through a separate express engagement where legally appropriate.

PART IV - ACCURACY, RESEARCH, AUTOMATION AND CORRECTION

15. Good-Faith Compilation and Evolving Content

The Website is maintained on a good-faith and reasonable-efforts basis. The project is intended to remain a living collection that can be corrected, expanded, reorganised and improved as stronger sources become available.

A large evolving reference collection may contain inadvertent typographical errors, broken links, duplicate entries, incorrect classifications, incomplete metadata, mistaken attributions, transliteration differences, outdated source information, omitted works, technical defects or material that subsequently becomes unavailable.

16. Automated and AI-Assisted Processes

Research, indexing, deduplication, classification, transcription, translation, data cleanup, link generation, technical development or other processes may be assisted by software, search systems, algorithms or artificial-intelligence tools. Such assistance does not guarantee accuracy and does not replace source verification where source verification is required.

Users should not treat automated output as a representation that every spelling, attribution, translation, doctrinal classification, calendar calculation or legal description is infallible.

17. No Admission by Correction

Correction, annotation, replacement, link disabling, reclassification or removal of material after notice does not, by itself, constitute an admission of negligence, infringement, defamation, malice, knowledge of wrongdoing or legal liability.

18. "AS IS" and "AS AVAILABLE"

To the fullest extent permitted by law, the Website is provided on an "AS IS", "AS AVAILABLE" and informational basis. No express or implied warranty is given that the Website will be uninterrupted, error-free, complete, permanently available, suitable for every person, compatible with every device, free from all security risks, or accurate in every detail.

Nothing in this clause excludes a warranty or statutory right that applicable law does not permit to be excluded.

PART V - THIRD-PARTY CONTENT, LINKS AND PLATFORMS

19. External Links and Search Results

The Website may provide links or search links to YouTube, Google, libraries, archives, publishers, temples, organisations, scripture sites, audio platforms, repositories and other independent services. These are provided principally for identification, reference and navigation.

A hyperlink does not by itself constitute ownership, hosting, republication, sponsorship, endorsement, authorship, adoption, approval or authorisation of the linked content. Search results, rankings, advertisements, comments, recommendations, uploads, channel policies and platform availability are controlled by third parties.

20. YouTube and Generic Search Links

Where a play icon or work title opens a generic YouTube search or other search-results page, the Website ordinarily supplies a navigational query rather than a fixed recording. The Operator does not select or control every result generated by the third-party search algorithm and does not represent that every result is licensed, authentic, complete or appropriate.

21. Third-Party Terms, Advertising and Transactions

A user's interaction with a third-party platform is additionally governed by that platform's own terms, privacy policy, intellectual-property policy, advertisements, payment rules and applicable law. The Operator is not responsible for independent purchases, subscriptions, advertisements, malware, account suspensions, representations or disputes arising solely between the user and a third party.

22. Hosting and Infrastructure Providers

The Website may depend on third-party hosting, domain, repository, code-hosting, content-delivery, analytics, banking or infrastructure providers. Service interruption, policy changes, repository suspension, outages, third-party cyber incidents or infrastructure failures may affect availability without creating liability merely because the Website uses those providers.

PART VI - COPYRIGHT, TRADEMARKS AND INTELLECTUAL PROPERTY

23. Rights in the Compilation and Original Website Material

To the extent recognised by law, the original selection, arrangement, taxonomy, database structure, compilation logic, original explanatory material, original graphics, original code, original metadata and other creator-produced material remain subject to the Operator's or other identified owner's intellectual-property rights.

This clause does not assert ownership over underlying scriptures, devotional compositions, performances, translations, photographs, recordings, editions or other material belonging to third parties.

24. Third-Party Copyright

All third-party literary works, compositions, translations, sound recordings, performances, photographs, illustrations, publications, videos and other protected material remain subject to the rights of their respective owners. Identifying, cataloguing or linking to a work does not transfer copyright in that work to the Operator or to a user.

25. Copyright Act, 1957 - No Blanket Exception

The Website is intended to operate consistently with the Copyright Act, 1957 and applicable Rules. Where the Website relies upon fair dealing, public-domain status, statutory exceptions, licence, consent or another lawful basis, that reliance extends only so far as the applicable legal requirements are actually satisfied.

The fact that the project is devotional, educational, non-commercial or free does not by itself create unlimited permission to copy protected material. Users must independently respect third-party rights when reproducing, adapting, communicating, uploading, commercialising or redistributing protected works.

26. Public-Domain Underlying Works and Modern Rights

An ancient, traditional or public-domain underlying composition may coexist with separately protected rights in a modern translation, critical edition, typesetting, photograph, illustration, sound recording, cinematograph film, digital restoration, commentary or performance. Users must distinguish between the underlying traditional work and protected modern embodiments of that work.

27. Trademarks, Names and Logos

Third-party trade marks, service marks, names, insignia and logos remain the property of their respective owners. Reference to them for identification, citation or navigation does not imply sponsorship, partnership or endorsement.

28. Limited Permission for Ordinary Users

Subject to third-party rights and these Terms, users may ordinarily access, bookmark and share links to the Website for lawful personal, devotional, educational and non-commercial purposes. Unmodified creator-controlled free publications may be shared only where their notices are preserved and such sharing does not violate third-party rights or any specific licence attached to the publication.

No permission is granted to falsely claim authorship, remove legal notices, sell the Website as one's own product, use the Operator's identity deceptively, conduct unauthorised bulk extraction, or create a misleading commercial mirror of the Website.

PART VII - RIGHTS-HOLDER NOTICE AND NOTICE-AND-CURE PROCEDURE

29. Good-Faith Rights-Holder Policy

The Operator does not intend knowingly to infringe third-party intellectual-property, privacy, publicity or other lawful rights. A genuine claimant is requested to send a complete written notice identifying the precise issue so that it can be examined responsibly.

30. Required Particulars of a Rights Notice

So far as reasonably possible, a notice should identify the claimant; contact information; the protected work or right; the legal basis asserted; evidence of ownership or authority; the exact Website URL, title, page or link complained of; an explanation of the alleged problem; the remedy requested; and supporting documents. An agent should provide evidence of authority to act for the rights holder.

31. Available Responses

Following receipt of a sufficiently identifiable complaint, the Operator may investigate, seek clarification, preserve records, correct metadata, add attribution, replace a link, temporarily disable creator-controlled access, remove creator-controlled content, obtain legal advice, communicate with relevant parties or take another lawful and proportionate step.

Taking such a step does not amount to an admission of liability.

32. Ordinary 90-Day Review and Cure Period

Except where a shorter period is mandatorily required by applicable law, a court order, governmental direction or legally applicable intermediary rule, a person complaining of an ordinary non-urgent factual, editorial, attributional, classification, reputational, contractual or comparable civil issue is requested first to provide a complete and verifiable written notice.

The Operator shall be afforded a reasonable opportunity, not exceeding 90 calendar days after receipt of such complete notice, to investigate and, where appropriate, correct, clarify, annotate, update, replace, disable or remove creator-controlled material.

The 90-day period is a good-faith ordinary correction mechanism. It does not suspend mandatory legal timelines, limitation periods that cannot be altered, emergency injunctions, criminal process or lawful orders requiring earlier action.

33. Shorter Mandatory Deadlines Prevail

Where the Information Technology Act, applicable Intermediary Rules, a competent court, law-enforcement authority, statutory authority or another mandatory legal regime requires acknowledgement, preservation, disablement, removal, reporting or other action within a shorter period, the shorter lawful period controls.

PART VIII - INFORMATION TECHNOLOGY ACT AND SECTION 79

34. Qualified Section 79 Safe-Harbour Reservation

To the extent, and only to the extent, that the Operator qualifies as an "intermediary" under the Information Technology Act, 2000 in relation to particular third-party information, data or communication links, the Operator expressly reserves and relies upon every exemption, defence, protection, limitation of liability and safe-harbour right lawfully available under Section 79 and the Rules made thereunder, subject to fulfilment of the statutory conditions.

Nothing in these Terms voluntarily surrenders a safe harbour that is otherwise available. Conversely, nothing in these Terms represents that Section 79 necessarily applies to

creator-authored, creator-selected, creator-controlled or otherwise non-intermediary material where the statutory conditions are not satisfied.

Non-commercial or free status is not, by itself, the legal test for Section 79 protection. Intermediary status, the nature of the particular material, the Operator's role, actual knowledge standards where applicable, and statutory due diligence remain relevant.

35. Intermediary Due Diligence and Rules

Where the Operator is legally treated as an intermediary, the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, as amended from time to time, and any other applicable statutory rules shall prevail over inconsistent contractual wording. Required terms, grievance information, takedown procedures and statutory response periods shall be maintained to the extent legally applicable.

36. No Authorisation, Procurement or Abetment

The Website does not authorise, procure, direct, conspire in, intentionally assist, induce, ratify or abet copyright infringement, unlawful publication, defamation, privacy violations or other illegal conduct. An independent unlawful act by a third party does not become an act of the Operator merely because the person accessed the Website or followed a link.

This clause does not shield the Operator's own conduct where a competent authority establishes the legal ingredients of liability.

PART IX - BNS, BNSS, CRIMINAL PROCESS AND RELIGIOUS SENSITIVITY

37. No Private Immunity from Criminal Law

No disclaimer or contract can lawfully confer immunity from criminal liability where the ingredients of an offence are established. These Terms are intended to define purpose, demonstrate good-faith procedures, allocate contractual responsibility where lawful, preserve available defences and safe harbours, and facilitate lawful compliance. They are not intended to obstruct investigation, evidence preservation, search, seizure, prosecution, judicial process or any lawful exercise of power.

38. Bharatiya Nyaya Sanhita, 2023

The Website is intended to operate consistently with the Bharatiya Nyaya Sanhita, 2023. It does not intend to defame any person, deliberately and maliciously outrage religious feelings, promote unlawful hatred, threaten, harass, impersonate, cheat, publish unlawful obscenity or commit another offence. Historical, theological or regional differences are presented, where included, for devotional, cultural, educational, archival or documentary purposes.

39. Bharatiya Nagarik Suraksha Sanhita, 2023

Nothing in the Website or these Terms limits the powers lawfully available to investigating agencies, police, prosecutors, magistrates or criminal courts under the Bharatiya Nagarik Suraksha Sanhita, 2023 or other applicable criminal-procedure law. The 90-day ordinary correction mechanism does not delay or restrict mandatory criminal process.

40. Bharatiya Sakshya Adhiniyam, 2023 and Record Preservation

Where reasonably necessary to investigate misuse, establish acceptance, defend a claim or comply with law, the Operator may preserve relevant electronic records, logs, communications, versions and notices in a lawful manner, subject to applicable privacy and data-protection requirements.

PART X - USER CONDUCT, SUBMISSIONS AND MISUSE

41. Prohibited Conduct

A user must not use the Website to infringe intellectual-property, privacy, publicity or other rights; impersonate another person; falsely claim agency or affiliation; introduce malware; attack infrastructure; bypass security; commit fraud; unlawfully harvest personal information; threaten or harass; publish unlawful content; or use the Website in a manner prohibited by Indian law.

42. Independent Redistribution and Modification

A user who independently copies, republishes, edits, uploads, commercialises or redistributes material does so on that user's own responsibility. Permission to access the Website is not permission to violate third-party rights. Altered copies must not be deceptively represented as official or authorised versions of the Operator's publication.

43. No Agency, Partnership or Representation

No visitor, volunteer, contributor, donor, sharer, researcher, feedback provider or other person becomes the Operator's employee, agent, representative, partner, franchisee, trustee, fiduciary or authorised intermediary merely by interacting with the Website. Express written authority is required before any person may represent that they act on behalf of the Operator.

44. Feedback, Corrections and Voluntary Submissions

If a user voluntarily sends corrections, suggestions, source references, public-domain material, metadata, translations, code, feedback or other submissions for possible inclusion, the user represents that they have lawful authority to send the material and that the submission does not knowingly violate third-party rights.

Unless a separate written agreement states otherwise, the user grants the Operator a non-exclusive, worldwide, royalty-free licence to review, reproduce, edit, adapt, incorporate and publish the submitted material for the Website and related non-commercial archival or reference purposes. The Operator is under no obligation to publish any submission.

45. No Confidential Submissions

General Website feedback channels should not be used to send confidential legal instructions, privileged material, passwords, highly sensitive personal information or information that the sender is not authorised to disclose. A general Website message does not create professional privilege or an advocate-client relationship.

PART XI - PRIVACY, LOCATION, MINORS AND LOCAL STORAGE

46. Privacy and Data Protection

Any processing of personal data shall be subject to applicable Indian law, including the Digital Personal Data Protection Act, 2023, applicable Rules and commencement notifications, as they apply from time to time. The Website should maintain a separate Privacy Policy describing actual data practices.

Nothing in these Terms represents that the Website collects categories of data that it does not in fact collect. Technical implementation and the Privacy Policy should be kept consistent.

47. Location-Dependent Features

Where a user voluntarily activates a location-dependent feature, such as a Panchang or astronomical calculation, the user authorises the technically necessary handling of location input for the requested function, subject to browser permissions, the Privacy Policy and applicable law. A user may decline location permission where the feature permits manual location entry.

48. Local Storage, Cookies and Preferences

Favourites, counters, settings and similar features may use browser local storage, cookies or comparable technologies where technically implemented. Deleting browser data, changing devices, clearing storage, reinstalling software or modifying privacy settings may remove local preferences. The Operator does not guarantee recovery of locally stored information.

49. Children and Minors

The Website may contain devotional material suitable for family use, but it is not intended to solicit unnecessary personal data from children. Minors should use interactive, location, contribution or communication features under appropriate parental or guardian supervision. Where law requires verifiable parental consent for processing a child's personal data, that requirement must be followed.

PART XII - SECURITY, AVAILABILITY AND FORCE MAJEURE

50. Security

Reasonable efforts may be made to maintain Website security, but no Internet service can be represented as completely immune from hacking, malware, denial-of-service attacks, third-party compromise, software defects or data loss. Users remain responsible for securing their own devices, accounts and backups.

51. Availability, Modification and Discontinuation

The Operator may add, remove, reorganise, correct, suspend, replace or discontinue Website content or functionality because of legal, technical, editorial, financial, preservation or security reasons. There is no guarantee that every historical feature, third-party link, PDF version or external resource will remain available indefinitely.

52. Force Majeure

To the fullest extent permitted by law, the Operator shall not be responsible for delay or failure caused by circumstances beyond reasonable control, including natural disaster, fire, flood, war, civil disorder, government action, power failure, telecommunications failure, hosting outage, repository outage, cyberattack, hardware failure, software failure, payment-network interruption or comparable events.

PART XIII - LIMITATION OF LIABILITY AND USER RESPONSIBILITY

53. Third-Party Responsibility

Each independent third party remains responsible for that party's own conduct. The Operator is not liable merely because another person independently uses, misuses, downloads, uploads, copies, modifies, republishes, distributes, commercialises, extracts, impersonates, misrepresents or creates an unauthorised derivative from Website material or from external material discovered through the Website.

54. Exclusion of Indirect and Consequential Loss

To the fullest extent permitted by applicable law, liability is excluded or limited for indirect, remote, consequential, incidental, exemplary or special loss, including loss of profit, income, opportunity, business, data, reputation or anticipated benefit, where such exclusion is lawful, particularly where the loss results from third-party platforms, altered copies, malicious mirrors, external services or independent user conduct.

55. Contractual Monetary Cap

Where contractual monetary liability arising solely from use of the Website may lawfully be limited, the aggregate contractual monetary liability shall not exceed the amount actually paid directly by the claimant to the Operator for the specific Website service giving rise to the liability. Where the Website was used free of charge, no purchase price was received from that user.

Nothing in this clause excludes or limits liability that applicable law expressly prohibits from being excluded or limited.

56. User Responsibility

Each user remains responsible for their own downloads, uploads, copies, communications, republication, commercialisation, infringement, technical actions, representations, reliance and compliance with law. The appearance of a title or external search link grants no permission to violate third-party rights.

PART XIV - INDEMNITY

57. User Indemnity for the User's Own Unlawful Conduct

To the fullest extent legally enforceable, a user whose own unlawful, unauthorised or contractually prohibited conduct directly causes a claim shall indemnify and hold harmless the Operator against reasonable claims, losses, liabilities, costs and expenses directly arising from that conduct, including where the user independently republishes protected material, falsely claims authority from the Operator, introduces malware, misuses personal data or creates a deceptive commercial copy.

No indemnity applies to the extent applicable law prohibits such transfer of responsibility or to the extent the claim arises from the Operator's own proven non-excludable liability.

PART XV - GOVERNING LAW, JURISDICTION AND DISPUTE HANDLING

58. Governing Law

These Terms and the contractual relationship arising from lawful use of the Website are governed by the laws of India. Depending on the circumstances, relevant legislation may include the Information Technology Act, 2000; applicable Information Technology Rules; Copyright Act, 1957; Bharatiya Nyaya Sanhita, 2023; Bharatiya Nagarik Suraksha Sanhita, 2023; Bharatiya Sakshya Adhinyam, 2023; Indian Contract Act, 1872; Trade Marks Act, 1999; Digital Personal Data Protection Act, 2023; Consumer Protection Act, 2019 where applicable; Foreign Contribution (Regulation) Act, 2010 where applicable; Income-tax Act, 1961; and other applicable Central or State law.

References to legislation include lawful amendments, rules, notifications, replacements and subordinate legislation applicable from time to time.

59. Delhi Forum - Qualified Exclusive Jurisdiction

The Website is compiled and administered from Delhi. Subject to mandatory statutory jurisdiction, and provided that competent courts at Delhi otherwise possess jurisdiction under applicable law, the parties intend that courts at Delhi, India shall have exclusive territorial jurisdiction over civil and contractual disputes directly between the Operator and a legally bound user.

This clause does not create jurisdiction where none otherwise exists, alter criminal territorial jurisdiction, override a mandatory consumer or statutory forum, prevent a competent authority from exercising lawful powers, or bind an unrelated person who never became contractually bound.

60. Good-Faith Pre-Litigation Notice

For ordinary civil disputes where the law permits such an arrangement, a claimant is requested to send a sufficiently detailed written notice and allow a reasonable opportunity for good-faith resolution before commencing adversarial proceedings. This request is not intended to restrain urgent lawful remedies, non-waivable rights or limitation periods.

61. International Users

A person accessing the Website from outside India is responsible for compliance with any local law that lawfully applies to that person. The fact that the Website can technically be accessed in another jurisdiction does not constitute a representation that every feature or contribution mechanism is lawful or appropriate in every country.

PART XVI - CHANGES, SEVERABILITY AND INTERPRETATION

62. Changes to These Terms

The Operator may update these Terms when reasonably necessary because of changes in law, Website functionality, payment methods, data practices, security, project structure or other legitimate requirements. The current version and effective date should be displayed conspicuously. Material changes should be brought to users' attention where reasonably appropriate.

63. Severability and Narrow Construction

If a competent court determines that a provision is invalid, illegal or unenforceable, that provision shall, where legally possible, be interpreted or narrowed to the minimum extent necessary, and the remaining provisions shall continue in effect. These Terms seek the maximum lawful protection available without claiming immunity prohibited by law.

64. No Waiver

Failure to enforce a provision on one occasion does not automatically waive that provision or any other provision on a later occasion. A waiver is effective only to the extent clearly made by the person legally entitled to grant it.

65. Statutory Savings

Every disclaimer, exclusion, limitation, indemnity, notice requirement and jurisdiction clause is qualified by the expression "to the fullest extent permitted by applicable law". Nothing in these Terms waives a non-waivable statutory right, obstructs lawful criminal process, defeats a competent court order, prevents lawful regulatory action, or excludes liability that cannot legally be excluded.

66. Headings, Language and Entire Terms

Headings are for convenience and do not enlarge the operative provisions. If translations of these Terms are provided, the English version shall control to the extent permitted by law where there is a material inconsistency. These Terms, together with the applicable Privacy Policy, Copyright / Rights-Holder Notice Policy and Contribution Policy, constitute the principal Website terms unless a separate written agreement expressly applies.

67. Survival

Provisions concerning intellectual property, user responsibility, limitations of liability, indemnity, governing law, jurisdiction, electronic evidence, dispute handling and any term that by its nature should survive shall continue after a user stops using the Website to the extent legally applicable.

PART XVII - CONTACT, GRIEVANCES AND FORMAL NOTICES

68. Error or Correction Notice

A user discovering a genuine error is encouraged to identify the exact page or URL, work title or feature, nature of the alleged error, proposed correction and, where possible, supporting source material. Clear notices help distinguish genuine issues from automated or vague complaints.

69. Copyright and Rights-Holder Notice

Copyright and other rights-holder complaints should be clearly marked "RIGHTS-HOLDER / COPYRIGHT NOTICE - URGENT REVIEW" and should contain the particulars described in these Terms. Incomplete notices may require clarification, subject always to any mandatory legal timeline.

70. Grievance and Legal Contact

For Website complaints, rights notices and formal communications, the following contact details may be used unless the Website publishes a more specific dedicated grievance address:

- Name: Ashish Bharani
- Email: ashishbharani984@gmail.com
- Mobile: +91-9289800984; 9870521478

71. Statutory Grievance Officer

For grievances relating to the Website, and if and to the extent appointment or publication of a Grievance Officer is legally required for the Website's actual status and functions, the following Grievance Officer is designated. Complaints shall be handled in accordance with the mandatory timelines and procedures applicable under law:

- GRIEVANCE OFFICER: Adv. R.K. Bharani
- EMAIL: bharani.law.chambers@gmail.com
- CONTACT: P-37, P.O. Lane, Tis Hazari Courts, Delhi 110 0054

72. Formal Notice Requirements

A formal legal notice should identify the sender, legal capacity, complete contact details, exact material complained of, legal basis asserted, relevant evidence and specific relief requested. Sending a notice does not itself establish the correctness of the allegation, and the Operator reserves all available substantive and procedural rights, defences, exceptions and safe harbours.

PART XVIII - FINAL NOTICE

The Hindu Devotional Collection is intended as a good-faith, non-commercial devotional, cultural, educational, archival and reference initiative. It is not operated for the sale of devotional works. Third-party rights remain with their respective owners, and external links are provided primarily for identification, reference and navigation.

The Operator does not knowingly authorise copyright infringement, defamation, unlawful publication, privacy violations or other illegal activity.

To the extent that the Operator qualifies as an intermediary in relation to particular third-party information, data or communication links, every protection lawfully available under Section 79 of the Information Technology Act, 2000 and applicable Rules is expressly reserved. No representation is made that Section 79 applies where its statutory requirements are not fulfilled.

A person identifying a genuine mistake, copyright issue, rights issue, inaccurate attribution or other problem is requested to notify the Operator with sufficient particulars. Ordinary non-urgent editorial and civil complaints may require up to 90 calendar days for investigation and appropriate correction. Where applicable law, a court order, governmental direction or statutory intermediary rule requires action within a shorter period, the shorter mandatory period prevails.

Nothing in these Terms limits or excludes liability, rights, remedies, statutory duties or governmental powers that cannot lawfully be limited or excluded.

With responsibility, transparency and respect for rights,

Ashish Bharani
Compiler - Hindu Devotional Collection

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